

TABLE OF CONTENTS

<u>POLICY NAME</u>	<u>POLICY NUMBER</u>
EMPLOYEE ACKNOWLEDGEMENT	
SCHEDULES	
INTRODUCTION	1.0
Mission Statement	1.1
Client Relations	1.2
Adopting and Amending Policies	1.3
GENERAL EMPLOYMENT POLICIES	2.0
Non-Discrimination Statement	2.1
Recruitment	2.2
Interview Teams	2.3
Employee Classification	2.4
Assignment	2.5
Provisional Employee	2.6
Nepotism	2.7
Transfer	2.8
Acting Appointment	2.9
Resignations	2.10
HEALTH AND SAFETY POLICIES	
Accidents	3.0
Bloodborne Pathogens	3.1
Child Abuse and Criminal Clearance	3.2

Health Appraisals	3.3
Mandated Reporting of Suspected Child Abuse and Neglect	3.4
Universal Precautions	3.5
Workplace Safety	3.6
Food and Drink in Classrooms	3.7
HOURS OF ATTENDANCE/WORK SCHEDULES	4.0
Letter of Appointment	
Overtime	4.1
Payment for Training and Travel Time	4.2
Emergency Closing	4.3
PAYROLL	5.0
Work Related Expenses	5.1
EMPLOYEE BENEFITS	6.0
Care of Employee's Children	6.1
Career Development	6.2
State Regulated Training Hours	6.2-1
COBRA Notice	6.3
Holidays	6.4
Leaves of Absence	
<i>Bereavement Leave</i>	6.7-1
<i>Family and Medical Leave</i>	6.7-2
<i>Jury and Witness Duty</i>	6.7-3
<i>Leave Without Pay</i>	6.7-4

<i>Other Leaves of Absence</i>	6.7-5
Sick Leave	6.8
Vacation	6.9
COMPENSATION PLAN	7.0
EMPLOYEE CONFLICT RESOLUTION	8.0
PERFORMANCE APPRAISAL	9.0
EMPLOYEE CODE OF CONFLICT	10.0
Business Ethics and Conduct	10.1
Acceptance of Gifts	10.2
Confidentiality	10.3
Conflict of Interest	10.4
Disciplinary Action	10.5
<i>Reprimand</i>	10.5-1
<i>Written Warning</i>	10.5-2
<i>Investigatory Suspension</i>	10.5-3
<i>Suspension</i>	10.5-4
<i>Termination</i>	10.5-5
E-mail and Internet Usage	10.6
Employees Personal Items	10.7
Non-Fraternization	10.8
Non-Solicitation	10.9
Outside Employment	10.10
Personal Appearance	10.11

Dress Code	10.11-1
Political Activities	10.12
Sexual Harassment	10.13
Smoke Free Workplace	10.14
Substance Abuse Control	10.15
Telephone Calls and Mail Usage	10.16

LESSON PLANNING AND RESOURCES

Lesson Plans	11.0
Office Resources	11.1

PERSONNEL RECORDS

Employment References	12.1
Employment Verifications	12.2

NEXGEN SCHOOL FOR EARLY LIFE FOUNDATIONS, LLC

POLICY: INTRODUCTION

POLICY NO.: 1.0

Effective Date: August 1, 2005

Welcome NexGen School for Early Life Foundations, LLC. This manual, while not an implied or express contract, states in general terms the conditions and benefits of employment with NexGen School for Early Life Foundations, LLC for your guidance. We place special emphasis at NexGen School for Early Life Foundations, LLC on our employees as individuals and recognize that no manual can cover all situations. It is our hope that everyone will be able to achieve the highest level of performance and job satisfaction possible. This manual shall not bind NexGen School for Early Life Foundations, LLC to continued employment of any individual employee, or group of employees.

The purpose of this manual is to set forth the personnel and administrative policies relative to the employees of NexGen School for Early Life Foundations, LLC. It also explains benefits which you may receive as an employee. You are encouraged to discuss any questions you may have with your immediate supervisor or with the Director.

This manual will be amended from time to time, as policies change or are added hereto, in accordance with Policy No. 1.2. It is your responsibility to keep your manual updated: Revisions and changes shall be supplied to you and will be available as soon as possible after adoption.

ALL POLICIES ADDRESSED IN THIS HANDBOOK ARE EFFECTIVE AUGUST 1, 2005 UNLESS OTHERWISE NOTED UNDER AN INDIVIDUAL POLICY.

POLICY: MISSION STATEMENT

POLICY NO.: 1.1

NexGen School for Early Life Foundations, LLC is committed to "Developing Young Minds For A Better Future."

POLICY: CLIENT RELATIONS

POLICY NO.: 1.2

Clients are our organization's most valuable assets. Every employee represents NexGen School for Early Life Foundations, LLC to our clients and to the public. The manner in which we do our jobs presents an image of our entire organization. Clients judge all of us by how they are treated by each and every employee. Nothing is more important than being, respectful, courteous, friendly, helpful, and prompt in the attention given to clients.

Our personal contact with the public, our manners on the telephone, and the communications we send to clients are a reflection not only of ourselves, but also of the professionalism of NexGen School for Early Life Foundations, LLC. Positive client relations not only enhance the public's perception or image of NexGen School for Early Life Foundations, LLC, but also pay off in increased grants and contracts.

As a requirement of your employment, it is expected that all employees of NexGen School for Early Life Foundations, LLC will interact respectfully, courteously, and promptly with our clients.

Employees who fail to have appropriate client relations will be subject to disciplinary action, up to and including termination.

POLICY: ADOPTING AND AMENDING POLICIES POLICY NO.: 1.3

This policy manual has been adopted by the Director and Owner of NexGen School for Early Life Foundations, LLC.

This policy manual will be reviewed every year. Recommendations for change to the policy manual should be directed to the Director.

POLICY: EMPLOYMENT

POLICY NO.: 2.0

The NexGen School for Early Life Foundations, LLC strives to employ people who are the best qualified to best meet the needs of the agency. Employment shall be on the basis of proven competence or potential ability as indicated by academic achievements, personal attitude, and prior work experience in accordance with the qualifications-and essential job functions listed on the job description.

The employment of all persons shall be contingent upon the approval of the Director and/or Owner.

POLICY: NON-DISCRIMINATION STATEMENT POLICY NO.: 2.1

NexGen School for Early Life Foundations, LLC is an equal opportunity employer. All employment activities will be conducted in a manner to assure equal opportunity for all and will be based solely on the individual merit and fitness of applicants, candidates and/or employees without regard to race, color, religion, creed, gender, age, national origin, pregnancy, marital status, sexual orientation, or disability.

Employees hired for positions where the primary responsibility is direct child care must be [18] years of age, have a High School Diploma, a current First-Aid certification, and clear a background check in accordance with the regulations established by the State of Texas Department of Protective and Regulatory Services.

POLICY: RECRUITMENT

POLICY NO.: 2.2

All position vacancies shall be announced to staff prior to listing in the area newspapers or other advertising.

This policy is not a guarantee that a current staff member will be promoted/transferred or hired to fill the vacant position. NexGen School for Early Life Foundations, LLC strives to employ persons who are the best qualified to best fill the needs of the agency in accordance with

the qualifications and essential job functions listed on the job descriptions.

All applicants must complete an agency application and submit proof of qualifications.

All advertisements or postings for job vacancies must be approved by the Owner and Director.

POLICY: INTERVIEWS

POLICY NO.: 2.3

Effective Date: August 1, 2005

The DIRECTOR and/or OWNER with selected teachers (if needed) will select Candidates for interview from the applications received for the position. Candidates will be interviewed by the immediate supervisor of the position. All hiring is subject to the approval of the Director/Owner.

POLICY: EMPLOYEE CLASSIFICATIONS

POLICY NO.: 2.4

1. **Full-Time Employee:** A person who is regularly scheduled for at least 40 hours per week.
2. **Part-Time Employee:** A person who is regularly scheduled for less than 40 hours per week.
3. **Full-Year Employee:** A person who is employed on a Full- or Part-Time basis for 52 weeks per year.
4. **Part-Year Employee:** A person who is employed on a Full- or Part-Time basis for less than 52 weeks per year.
5. **Long-Term Substitute:** A person employed for a temporary period exceeding 2 weeks and for a specific purpose. Long-Term substitutes will not be eligible for benefits.
6. **Short-Term Substitute:** A person employed for a daily and/or weekly period to fill a vacancy created by the absence of a staff person. Short-Term substitutes will not be eligible for benefits.

7. **Exempt:** Employees not eligible to receive overtime pay. Their salary covers all hours worked. Exempt employees are paid to perform a job regardless of the number of hours required to accomplish all aspects of the job as outlined in the job description.
8. **Non-Exempt:** Hourly and salaried employees eligible to receive overtime pay pursuant to Fair Labor Standards Act. Non-exempt employees are paid for the hours worked to complete their job as outlined in the job description.

POLICY: ASSIGNMENT

POLICY NO.: 2.5

Employees will be assigned to a position for which they are qualified, based on the needs of the agency, to provide services of the highest quality and efficiency, and to maintain compliance with LICENSING REGULATIONS . NexGen School for Early Life Foundations, LLC will make Employee Assignments in its sole discretion. An employee's Assignment includes, position, scheduled hours and location.

NexGen School for Early Life Foundations, LLC reserves the right to change an employee's assignment at any time to continue to meet the needs of the agency and to maintain compliance with LICENSING REGULATIONS. Employees will be required to work overtime or alternate schedules as assigned by a Supervisor, Director, Executive Director and/or Owner. Employees will be given as much notice as possible when changes to their normal work schedule are made.

Employee's who refuse re-assignment will be subject to disciplinary action up to and including termination.

POLICY: PROVISIONAL EMPLOYEE

POLICY NO.: 2.6

Provisional Employee: An employee will be provisional for up to 90 business days of employment when initially hired or placed in a new position. During the Provisional Period, NexGen School for Early Life Foundations, LLC evaluates the provisional employee's performance to determine if she or he meets the standards set by NexGen School for Early Life Foundations, LLC job description and this Personnel Policy Manual.

Provisional employees shall not be eligible for paid sick leave, vacation, personal, paid holidays, or any other form of paid absence during the provisional time.

The provisional period may be extended up to an additional 90 days, only where it is deemed necessary and appropriate. In all cases of requests to extend an employee's provisional period, the supervisor must submit a performance appraisal and the reason for extension, and the length of extension that is recommended. Requests for extension can not be submitted after the provisional period concludes.

Upon successful completion of the provisional period, the supervisor will recommend retention of the employee to Director and/or Owner. The recommendation must be accompanied by a completed final provisional performance appraisal. Upon approval by the Director and/or Owner, the employee will attain regular employment status and thereby will be deemed eligible for those benefits provided to regular employees of the same classification.

Should the provisional employee not be recommended for regular status, the employee will be terminated no later than the last day of the provisional period or any extension thereof.

Employment may be terminated at any time during the provisional period with or without cause.

All employment documentation required must be provided by the employee prior to acquiring regular employment status.

POLICY: NEPOTISM

POLICY NO.: 2.7

For the purpose of this policy, immediate family shall include any of the following persons:

Husband	Mother-in-Law	Niece
Wife	Father-in-Law	Nephew
Mother	Son-in-Law	Brother-in-Law
Father	Daughter-in-Law	Sister-in-Law
Sister	Step-Child	Grandmother
Brother	Step-Parent	Grandfather
Daughter	Aunt	Granddaughter
Son	Uncle	Grandson
Any person residing in the employee's immediate household		

Family members of current employees may be a valuable source of qualified applicants.

If a position is held over which a member of her or his immediate family exercises supervisory authority, supervisor will be held accountable for imparting fair and equal treatment to all staff members.

Any problems concerning unfair behavior needs to be reported to Director and/or Owner as soon as possible.

POLICY: TRANSFER

POLICY NO.: 2.8

Voluntary Transfer:

Written request from employees for transfer within job classification may be considered by the Agency. Written requests should be submitted to Director and must include the position to which the employee would like to be transferred, the reason for the request, and perceived benefits to the agency. NexGen School for Early Life Foundations, LLC will evaluate the employee's request based upon the needs of the agency. The decision to approve an employee's transfer request is in the sole discretion of NexGen School for Early Life Foundations, LLC.

Employees may apply for any vacant position within for which they are qualified in accordance with Policy Number 2.5 (Assignment) and will receive the same consideration as any applicant for the position.

Involuntary Transfer:

As agency needs vary, NexGen School for Early Life Foundations, LLC reserves the right to change an employee's assignment in its sole discretion. Changes to an employee's assignment may include changes to one or more of the following: position, scheduled hours, and/or location.

Employees who refuse transfer will be subject to disciplinary action up to and including termination.

POLICY: ACTING APPOINTMENT

POLICY NO.: 2.9

The Agency may appoint an employee to fill a position on a temporary basis.

The employee may receive a salary adjustment during the acting appointment to compensate for additional duties and responsibilities as determined by the Director and/or Owner on a case by case basis.

The employee will automatically return to her or his previous position and salary when the acting appointment is completed.

Employees who refuse an acting appointment may be subject to disciplinary action up to and including termination.

POLICY: RESIGNATION

POLICY NO.: 2.10

Employees are required to give a minimum of two weeks' notice of the intent to terminate employment. Notice must be given in writing to Director. Vacation leave may not be used during the notice period.

Employees who give the required notice will be entitled to payment of accumulated vacation and personal leave time provided that all agency equipment and property has been returned and the employee has participated in the Exit Interview. Employees who fail to give the required notice will forfeit payment of any accrued leave time.

Former employees are not permitted on NexGen School for Early Life Foundations, LLC property without prior permission from Director.

POLICY: ACCIDENTS

POLICY NO.: 3.0

In order to protect your claim for compensation and/or minimize NexGen School for Early Life Foundations, LLC and its employees' liability, all injuries or accidents occurring during employment, no matter how minor, must be reported to Director immediately.

All employees are covered by Workers Compensation insurance and must seek treatment for accidents and injuries as required by the plan. Employees will be required to provide information regarding the accident or injury to their immediate supervisor within 24 hours.

Employees who are placed on Workers Compensation will be notified in writing of the status of the position, status of health insurance benefits, and their responsibilities while on Workers Compensation.

Accidents or injuries involving children must be reported immediately to Director. Employees will be required to complete accident/injury reports for these incidents. Employees will be advised by Director to call the child's parents to apprise them of the incident/accident as necessary. A parent is required to sign the accident/injury report at the end of the day following the incident/accident. A copy of the signed accident/injury report will be given to the child's parent and a copy should be given to Director. These documents will become a part of the child's record.

Accidents involving parents or visitors must be reported immediately to Director. Employees will be required to complete accident/injury reports for these incidents. The accident/injury report should be given to Director. These documents will become part of the agency's record.

Any employee who fails to appropriately report, or files a false accident/injury report will be subject to disciplinary action up to and including termination.

POLICY: BLOODBORNE PATHOGENS

POLICY NO.: 3.1

The Bloodborne Pathogens policy covers all employees who "reasonably anticipate" coming into contact with human blood and other potential infectious materials (OPIM), which includes but is not limited to: semen, vaginal secretions, and any bodily fluid that visibly contains blood.

Employees may in the course of her or his daily activities come into contact with other potentially infectious materials. Those situations include, but are not limited to the following:

- providing assistance after an accident has occurred with children, employees, parents and/or volunteers.
- assisting children during medical procedures, i.e., first-aid, nose bleeds, times of illness, administration of medication, etc.
- diapering children or cleaning up after a child has a toileting accident
- handling of contaminated items such as soiled clothing, tissues, and diapers.
- cleaning up and handling broken glass and/or sharp objects

Employees are required to treat all children and fellow employees as though they are infected with a bloodborne pathogen regardless of a known medical condition, how they look, or what is known about their lifestyle. Persons infected with Bloodborne Pathogens do not look a certain way, act in a particular fashion, are a certain age or lead particular lifestyles. Persons with a bloodborne pathogen disease are not required to disclose their illness to the employees or administration of The NexGen School for Early Life Foundations, LLC, as such information is Confidential and protected by law. Common Bloodborne Pathogens include but are not limited to: HIV, Hepatitis, Syphilis, and Herpes. These and other Bloodborne Pathogens are transmitted primarily through blood, and other potentially infected materials (OPIM) which include but are not limited to: semen, vaginal secretions any bodily fluid that visibly contains blood.

Employees are required to report any incident of exposure to Blood or OPIM to Director. Additionally, the employee is required to complete an **Exposure Control Incident Report** located at Director's Office. The completed **Exposure Control Incident Report** must be turned into the Director within **1** hour of the exposure incident. An Exposure Incident Occurs when an employee comes in direct contact with or thinks they may have come in direct contact with another person's blood or OPIM. Should an employee wearing personal protective equipment (i.e. Gloves) get blood on the personal protective equipment, an exposure incident would only occur if the personal protective equipment were to be breached in some manner (i.e. A torn or broken glove). **Failure to report an exposure incident and/or complete and turn in the Exposure Control Incident Report as outlined above will result in disciplinary action up to and including**

termination.

The NexGen School for Early Life Foundations, LLC will make available to the employee or volunteer the following within 24 hours following an Exposure Incident at NexGen School for Early Life Foundations, LLC expense: laboratory tests, including testing the employees blood, Hepatitis B Vaccination (if the employee has not been previously vaccinated against Hepatitis B) and a medical evaluation performed by a licensed medical professional. The employee has the right to decline any, or all of the above if they so choose. The employee is required to complete an Exposure Control Consent Form indicating the choices they have made.

All employees are required to strictly adhere to the Universal Precautions Procedures as outlined in the Universal Precautions Policy Number to control exposure to Bloodborne Pathogens and to promote good hygiene.

NexGen School for Early Life Foundations, LLC provides the following personal protective equipment for the use of the employees: vinyl/latex gloves in a variety of sizes, and CPR guards, located in the First-Aid Kit in the Lobby office. Employees are required to have personal protective equipment in their immediate area at all times. When traveling outside of the classroom area, employees are required to carry the First-Aid Bag/Hip Pack on their person at all times. Employees are required to use the personal protective equipment in each and every instance warranted by this and other policies and procedures, in the manner in which the personal protective equipment is designed. Failure to appropriately use personal protective equipment at any time will result in disciplinary action up to and including termination.

Employees should be mindful of blood or OPIM on their clothing or personal items. Contaminated clothing and personal items must be cleaned and/or disposed of in a manner to ensure that further exposure does not occur. This may require that an employee's clothing be torn or cut off and/or thrown away. NexGen School for Early Life Foundations, LLC is not responsible for clothing or personal items ruined or destroyed as a result of contamination and/or removal as per this policy.

Employees are required to attend an annual Bloodborne Pathogens and Universal Precautions Training. NexGen School for Early Life Foundations, LLC will provide the required bloodborne pathogen training and employees will be notified in writing of the date and time of such training. Failure to attend this training will result in disciplinary action up to and including termination.

POLICY: CHILD, ABUSE & CRIMINAL CLEARANCE POLICY NO.: 3.2

State law mandates that all new employees have current (less than 3 months old)

Clearances from State Police and Texas Department of Family and Protective Services. State law and Licensing Regulations stipulate that the clearances show the employee has no open accusations or convictions of child abuse, neglect. State law and Licensing Regulations further set guidelines for what convictions and arrests may and may not appear on the clearances.

When an employee is hired, she or he must provide the current clearances or copies of the completed clearance applications. Employees who provide completed applications, must submit returned clearances immediately upon receipt if clearances are returned directly to them. Failure to immediately submit clearances to Director will result in disciplinary action up to and including termination. These documents will become a part of the personnel record.

NexGen School for Early Life Foundations, LLC may require, in its sole discretion, employees to resubmit clearance applications at any time during their employ.

POLICY: HEALTH APPRAISAL

POLICY NO.: 3.3

Employment at NexGen School for Early Life Foundations, LLC is contingent upon receipt of the completed Health Appraisal Document in which a licensed health care provider indicates fitness for duty. The licensed health care provider may not be an immediate family member of the employee as defined by in the nepotism policy. Employees will be required to obtain a Health Appraisal prior to employment and as required thereafter.

Employees may be required to submit additional Health Appraisals/Certifications as needed to reasonably accommodate an employee's disability or to determine eligibility for leave.

HTALTH APPRAISALS will be maintained as a part of the employee's medical information file, which is a part of her or his personnel record.

The position description with the essential job functions is a critical part of the Health Appraisal. A copy of the position description is attached to the Health Appraisal, which must be reviewed and completed by the licensed health care provider at the time of examination.

Detailed physical and mental abilities for each position will be listed on the position description. These essential job functions will be discussed with you at time of hire and from time to time during your employment. The Agency reserves the right to amend and change these essential job functions at any time.

Employees will be required to execute an acknowledgment of the essential job functions prior to employment and at other times during their employment.

Employees who fail to provide the required Health Appraisal as required will be subject to disciplinary action up to and including termination.

POLICY: MANDATED REPORTING OF SUSPECTED POLICY
NO.: 3.4 CHILD ABUSE AND NEGLECT

Under the Child Protective Services Act, mandated reporters are required to report any suspicion of abuse or neglect to the appropriate authorities.

ALL EMPLOYEES of NexGen School for Early Life Foundations, LLC are considered mandated reporters, under this law.

Employees are required to report their suspicions of child abuse/neglect to the Texas Department of Family and Protective Services at 1-800-522-5400 **WITHIN 48 HOURS** of the time abuse is suspected. NexGen School for Early Life Foundations, LLC requires employees to inform Director prior to making the report to the Texas Department of Family and Protective Services..

The employees of NexGen School for Early Life Foundations, LLC are not required to discuss their suspicions with parents prior to reporting the matter to the appropriate authorities, nor are they required to investigate the cause of any suspicious marks, behavior or condition prior to making a report. Under the Act, mandated reporters can be held criminally responsible if they fail to report suspected abuse or neglect. NexGen School for Early Life Foundations, LLC take this responsibility very seriously and will make all warranted reports to the appropriate authorities. The Child Protective Services Act is designed to protect the welfare and best interest of all children.

GUIDELINES ON CHILD ABUSE

The following pages contain information relating to child abuse. It is extremely important to make yourself familiar with the information, especially the parts pertaining to the characteristics of battered children and the indicators of child neglect. If you have any suspicions or concerns regarding a child, please get in touch with the director and begin to keep an anecdotal record of the child.

CHARACTERISTICS OF BATTERED CHILDREN

Abused children endure life as if they are alone in a dangerous world, with no real hope of safety. Feeling unprotected, an abused child tries to protect himself in all the ways he can.

When a child has been injured and is brought for treatment, the child usually appears to: *Have no close feelings or affect with parents or other people. Be fearful. Be quiet.*
Show no reaction to pain or expectation of being comforted.

Having had violent physical contact with adults in the past, the child is often: *Wary of physical contact initiated by an adult.*

When admitted to a hospital ward, the battered child:
Seems less afraid than other children and settles in quickly.

When other children cry, the battered child:
Becomes apprehensive and watches them with curiosity.

The battered child will also become:
Apprehensive when an adult approaches the crying child.

While in a new situation, the child:
Seeks safety in sizing up the situation and being alert for danger.

Children who have been battered do not behave as typical children do. *They display many adult-like reactions.*

INDICATORS OF CFLELD NEGLECT

There are various characteristics that can describe child neglect in general, but for clarity, neglect can be divided into two subgroups-physical and emotional neglect. These two aspects contribute to each other and rarely occur separately. The following are characteristics that may indicate physical neglect:

1. *Malnourished*
2. *Ill-clad or dirty*
3. *Overcrowded or unhealthy sleeping arrangements*
4. *Receiving inadequate supervision*
5. *Totally unsupervised*

Many of the above mentioned characteristics are also indicative of emotional neglect, along with the following:

1. *An insecure child, seemingly withdrawn or overaggressive*
2. *Failure to attend school regularly*
3. *Constant friction in the home*
4. *Exposure to unwholesome and demoralizing circumstances*
5. *Denied normal nurturance*

REPORTING CHILD ABUSE IN TEXAS

In Texas, The Texas Department of Family and Protective Services investigates reports of suspected child abuse, and neglect.

TDFPS staff are available to receive referrals at 1-800-522-5400 or 956-412-4710.

Their website is: www.txchildcaresearch.org.

IMMUNITY FROM CIVIL OR CRIMINAL LIABILITY

Any person who reports abuse or neglect, pursuant to the law or testifies in a child abuse hearing resulting from such a report, is immune from any criminal or civil liability as a

Result of such action. As mandated reporters, employees NexGen School for Early Life Foundations, LLC cannot be held liable for reports made to Child Protective Services which are determined to be unfounded, provided the report was made in "good faith".

PENALTY FOR FAILURE TO REPORT

Any person who knowingly fails to report suspected abuse or neglect, pursuant to the law or to comply with the provisions of the law is a disorderly person and subject to a fine of up to \$500.00 or up to six months imprisonment or both.

Causes for reporting suspected child abuse or neglect include, but are not limited to:

- Unusual bruising, marks, or cuts on the child's body
- Severe verbal reprimands
- Improper clothing relating to size, cleanliness, season
- Transporting a child without appropriate child restraints (e.g. car seats, seat belts)
- Dropping off/Picking up a child while under the influence of illegal drugs/alcohol
- Not providing appropriate meals including a drink for your child
- Leaving a child unattended for any amount of time
- Failure to attend to the special needs of a disabled child
- Sending a sick child to school over medicated to hide symptoms, which would typically require the child to be kept at home until symptoms subside.
- Children who exhibit behavior consistent with an abusive situation

Employees are required to use Universal Precautions when handling blood and other potentially infectious materials (OPIM), or when it is reasonably anticipated that contact with blood or OPIM will occur. Other potentially infectious materials (OPIM) include any bodily fluids which visibly contain blood, semen, and vaginal secretions.

Universal Precaution Procedures involve the use of protective barriers (latex or vinyl gloves and CPR guard) when it is reasonably anticipated that an employee may have contact with blood or other potentially infected materials (OPIM). Examples of when Universal Precautions should be used include but are not limited to: cleaning up blood, OPIM or unknown substances or spills, cleaning broken glass and/or other sharps, giving first aide to another person, changing a diaper or assisting in toileting routines and when using a needle to administer medication or test blood sugar.

Employees who fail to use Universal Precautions EVERY TIME it is warranted will be subject to disciplinary action up to and including termination.

The following preventive measures are to be used to reduce the spread of all infectious and contagious diseases.

1. Wash hands regularly. Hand washing is the best way to protect both child and caregiver. Use the recommended hand washing technique:
 - Use antibacterial liquid soap and scrub hands for 1 minute.
 - Scrub tops of hands, palms, between fingers and under nails.
 - Rinse under water with hands pointed down.
 - Dry hands with paper towels.
 - Turn off the water faucet with a towel before disposing of it.
2. Wear disposable gloves while cleaning up blood, bloody saliva, urine, feces, or vomit, especially if there is a skin rash or open cut on your hands. If skin contact is made with these substances, wash the affected areas with soap under running water and immediately report the Exposure Incident to Director.
3. Follow the Diaper Changing Procedure each and every time a child's diaper is changed.
4. Change gloves after contact with each child. Throw away disposable gloves after each use. Wash hands after wearing the gloves.
5. Place disposable diapers in a plastic bag. Tie the bag securely.
6. Supervise toilet trained/training children to ensure that they wash their hands well after using the rest room.
7. Wear disposable gloves when assisting a toilet trained/training child during toileting

routines.

8. Clean up blood, OPIM and unknown spills on surfaces with 1 part ordinary household bleach diluted in 10 parts water. The bleach solution should be fresh and used on the day it is made. Isopropyl alcohol, Lysol disinfectant, and hydrogen peroxide can also be used.
9. Use CPR guards to minimize the need for mouth-to-mouth resuscitation in an emergency.

POLICY: WORKPLACE SAFETY

POLICY NO.: 3.6

NexGen School for Early Life Foundations, LLC strives to provide a safe workplace for all employees. Employees will be held to the highest standards regarding following and enforcing Safety Policies and Procedures. Employees are expected to set the best possible example and to be proactive regarding safety issues.

Employees must be keenly aware of their environment and persons who have entered any facility. Anyone who is not recognized should be questioned regarding the nature of her or his visit. Strangers should be escorted to the door. If you are uncertain or feel jeopardized seek the assistance of a supervisor or a co-worker. NEVER LEAVE THE CHILDREN UNATTENDED WITH A VISITOR/STRANGER. Employees who do not question and/or escort strangers out of the building will be subject to disciplinary action up to and including termination.

Former employees are not permitted on the property of NexGen School for Early Life Foundations, LLC without prior permission. If a former employee returns to the property, notify a supervisor immediately. Former employees will be asked to leave the premises.

Local police will be called, if necessary, to deal with safety issues.

All employees must be familiar with and adhere to the rules for releasing children. Refer to the Custody and Release of Children Policy contained herein.

Any unusual incidents should be documented and brought to the attention of your supervisor immediately.

Violation of this policy will result in disciplinary action, including termination.

POLICY: FOOD AND DRINK IN THE CLASSROOM POLICY NO.: 3.7

Employees are not allowed to take sodas or food into their classroom. Bottled water or water container with a closed lid is allowed.

Employees MAY NOT eat personal breakfast, lunch, or snacks while on duty. It is very unprofessional for a parent to walk into a classroom and view teacher eating during their work hours.

Employees may bring meals for breakfast, lunch, or snacks but must eat during their assigned meal breaks in the cafeteria or teacher's lounge.

POLICY: HOURS OF ATTENDANCE/WORK SCHEDULES POLICY NO.: 4.0

Employees will be advised of their regularly scheduled hours at the time of hire. Hours of attendance have been carefully planned and employees are required to work the hours and days for which they have been scheduled.

Temporary and permanent schedule changes may be necessary to effectively meet the needs of the program. Employees who refuse a schedule change will be subject to disciplinary action up to and including termination.

If you are unable to report to work for any reason, **you must notify your immediate supervisor at least 2 hours** prior to your scheduled starting time. Failure to notify your immediate supervisor in a timely manner will be considered unexcused absence and will be subject to disciplinary action. Employees will not be permitted to use available leave time for an unexcused absence. Employees who fail to notify their supervisor at all may be considered to have abandoned their position, which will result in termination.

Tardiness will not be tolerated. It is important that you are on time to supervise the group of children assigned to you. Tardiness will be documented and continued tardiness will result in disciplinary action, including termination.

Phone Numbers to contact Robyn:

Robyn Hernandez (956)244-2665

POLICY: OVERTIME

POLICY NO: 4.1

Employees will be notified at the time of hire as to whether they are classified as "exempt" or "non-exempt" as determined by the Fair Labor Standards Act. This policy addresses payment for overtime for non-exempt employees. Definitions of Exempt and Non-Exempt Employees can be found in the Employee Classification Policy.

The nature of the duties and responsibilities of some non-exempt employees may require overtime work from time to time. Overtime work should be considered an exceptional situation.

All overtime must be approved by the employee's immediate supervisor prior to working the overtime hours. In cases when obtaining prior approval is not possible, such as situations involving late pick of children, the employee must inform their immediate supervisor of the situation as soon as possible following the overtime hours. Employees who do not seek prior approval for working overtime will be subject to disciplinary action up to and including termination.

A supervisor may inform an employee of the need to work overtime with little or no notice. Employees who refuse overtime assignments may be subject to disciplinary action up to and including termination.

If a non-exempt employee is required to work overtime hours, the employee will receive monetary compensation for the additional hours worked as prescribed by wage and hour laws.

POLICY: TRAINING TRAVEL TIME

POLICY NO.: 4.2

Employees attending conferences paid for by NexGen School for Early Life Foundations, LLC, outside of the normal working hours, will be doing so on their own to accumulate the state requirement for continuing education hours. NexGen School for Early Life Foundations, LLC will normally pay for the conference, meals, training fees, and accommodations. All other costs will need to be incurred by employee as agreed upon prior to taking trip.

POLICY: EMERGENCY CLOSINGS

POLICY NO.: 4.3

Due to severe weather conditions or other emergency situations, there may be times when NexGen School for Early Life Foundations, LLC facilities may be closed. Emergency closing is at the discretion of the Director/Owner.

Severe Weather Conditions:

In the event of severe weather conditions, NexGen School for Early Life Foundations, LLC will generally follow the School District in determining whether or not to close the centers. Employees are instructed to listen to local radio and television stations for emergency closing information in these circumstances.

Employees are also instructed to contact Center Directors or management employees for further instructions.

Other Emergencies:

Other situations, including but not limited to, electrical power failure, lack of water, lack of heat or air conditioning, hazardous road conditions, or other situations which may endanger the safety or health of children and employees, may result in NexGen School for Early Life Foundations, LLC facilities being closed at the discretion of the Director. Employees will be advised of their obligations in these situations.

In the event of emergency closing in the middle of the day, employees will be instructed by supervisory staff as to their responsibilities during the emergency. Employees will be required to remain at the agency as long as there are children present. This may require employees to remain after normal closing hours. Employees must be mindful that compliance with Licensing Regulations must be maintained even in emergency situations. Employees will be informed by supervisory staff as to when they are able to go home. Employees may be required to go to another center to assist during an emergency closing. Employees who refuse to cooperate during an emergency closing situation will be subject to disciplinary action up to and including termination.

Employee Pay during Emergency Closings

Exempt and Non-Exempt employees will not be paid for days when NexGen School for Early Life Foundations, LLC is closed due to inclement weather or other emergency situation. Employees may choose to use accrued paid leave time if they wish to be paid.

When the agency closes after opening for the day, non-exempt employees will be paid only for the hours they actually work. Non-exempt employees may choose to use accrued paid leave time for the balance of the regular work schedule when sent home due to

Inclement weather or other emergency situation. Exempt employees who report to work and are sent home due to inclement weather or other emergency will be compensated for the entire day.

If an employee does not have accrued paid leave time, the employee will not be eligible for pay during inclement weather or other emergency closings as indicated in the above paragraphs.

Alternate Safe Location

NexGen School for Early Life Foundations, LLC has designated Harlingen South High School as its alternate safe location. This location will be used to house the employees and children in cases where the physical site is uninhabitable. Such scenarios include but are not limited to: fire, flood, toxic spill, and/or fumes. Director will make the determination to evacuate the center and proceed to the alternate safe location and will advise the employees as such. Employees are required in all emergency situations to have the sign in/out sheet and/or attendance record and emergency contact forms for their classroom when exiting the center.

POLICY: PAYROLL

POLICY NO.: 5.0

NexGen School for Early Life Foundations, LLC payroll week is from Wednesday to Wednesday. Payroll Records (Time Sheets) are available in the front office.

Employees will be paid Bi- Monthly on Fridays.

Employees must complete a Payroll Record and submit it to Director. Employees who falsify the Payroll Record will be subject to disciplinary action up to and including termination. Failure to complete the Payroll Record or submit it in a timely manner may have their paycheck delayed and may be subject to disciplinary action up to and including termination.

When a payday falls on a holiday, paychecks will be issued on the day before the holiday.

POLICY: WORK RELATED EXPENSES

POLICY NO.: 5.1

Local

Employees who are on approved agency business or attending conferences, workshops, and meetings will be reimbursed for travel including mileage. Mileage will be paid from the employee's usual work site to the designated site. Employees must receive prior approval from their immediate supervisor in order to receive payment for these expenses.

Outside Local Area

Employees who receive advance approval from Director to travel outside of the local area will be reimbursed for travel expenses, overnight accommodations, meals, tips and other costs necessitated by travel.

A Travel Expense Form must be completed and submitted with all ORIGINAL RECEIPTS to Director within two following travels. Failure to submit a Travel Expenses Form and/or Original Receipts in a timely manner may result in denial of reimbursement.

Employees who fail to complete or falsify the Travel Expense Report and Original Receipts may be subject to disciplinary action up to and including termination and possible criminal penalties.

POLICY: EMPLOYEE BENEFITS

POLICY NO.: 6.0

NexGen School for Early Life Foundations, LLC will offer benefits to employees based upon available funding. Each employee will be advised at the time of hire of the benefits for which they are eligible. Employees will be notified of additional benefits and their eligibility during the course of employment.

Benefits may include, health care, vision, dental, reduced child care for employees' children, holiday, vacation and/or sick leave etc.

NexGen School for Early Life Foundations, LLC does not guarantee any benefits to any employee. NexGen School for Early Life Foundations, LLC reserves the right to change, cancel and/or deny benefits in its sole discretion to maintain the fiscal soundness of the agency.

POLICY: CARE OF EMPLOYEE'S CHILDREN

POLICY NO.: 6.1

* *****

NexGen School for Early Life Foundations, LLC allows employees to enroll their children in the program. Under most circumstances, an employee who has a child enrolled in the center where she or he is employed will be prohibited from providing direct care to her or his child.

NexGen School for Early Life Foundations, LLC will attempt to provide reduced child care services to employees' children as budgetary situations dictate. Employees seeking to enroll their child(ren) in the program must discuss placement and possible tuition benefits with Director NexGen School for Early Life Foundations, LLC reserves the right to limit the number of employee's children receiving reduced child care at the center at any time.

Payment for the employee's child care services will be deducted directly from the employee's pay check. Employees will be required to complete a form authorizing NexGen School for Early Life Foundations, LLC to deduct the cost of their child care from their paycheck.

NexGen School for Early Life Foundations, LLC further reserves the right to dis-enroll an employee's child(ren) if the employee's performance is affected by having their child(ren) at the center. Employees must remember they are employed to perform a specific job description and must not allow themselves to be distracted by having their child(ren) enrolled in the program. The employee must not interfere with the supervision or authority of their child(ren)'s classroom teacher.

Non-enrolled children of employees are PROHIBITED from entering upon agency property except with the prior approval of NexGen School for Early Life Foundations, LLC or when the employee's family is invited to participate in agency activities.

POLICY: CAREER DEVELOPMENT

POLICY NO.: 6.2

NexGen School for Early Life Foundations, LLC encourages staff development and career development and will seek to provide opportunities for individuals through supervision, in-service training, staff meetings, and attendance at special training programs, conferences, and workshops.

Whenever an employee attends a training event she or he will be required to submit a training report within 5 days of the training. Training report should include a certificate of completion and test required by the state for annual professional development hours. The training report will be placed in the employee's personnel record.

POLICY: REGULATED YEARLY TRAINING

POLICY NO.: 6.2-1

The Texas Department of Family and Regulatory Services have mandated the following professional development:

- 15 hours of professional development to all caregivers who are in charge of children at any given time
- First-Aid training, to be renewed as deemed on certification card
- CPR training may be required by Director as needed, to be renewed as deemed on certification card

All professional development costs will need to be discussed with Director. It is the responsibility of the employee to keep these state mandated trainings current, but NexGen School for Early Life Foundations, LLC will help with financial costs involved whenever possible.

POLICY: COBRA

POLICY NO.: 6.3

Under a federal law called the Comprehensive Omnibus Budget Reconciliation Act of 1986 (COBRA), most employers sponsoring group health plans must offer to their employees an extension of health coverage (called "continuation coverage") to their employees at group rates under certain circumstances when coverage would otherwise

end. We at NexGen School for Early Life Foundations, LLC abide by the requirements of COBRA. The circumstances which qualify for an extension of coverage are called "qualifying events." Below is a list of qualifying events for yourself, your spouse, and your dependent children.

Qualifying Events For Yourself:

- A reduction in hours worked makes you ineligible for coverage.
- Termination of employment for reasons other than gross misconduct on your part.

Qualifying Events For Your Spouse:

- Death of employee (yourself).
- Termination of your employment for reasons other than gross misconduct.
- A reduction in employee's hours worked.
- Divorce or legal separation.
- Employee becomes eligible for Medicare.

Qualifying Events For A Dependent Child:

- Death of employee-parent.
- Termination of parent's employment for reasons other than gross misconduct.
- A reduction in parent's hours worked.
- Parent's divorce or legal separation.
- The dependent ceases to be a dependent child under the health plan.

You or a member of your family must inform the Human Resources Department of a divorce, legal separation, or a child losing dependent status within 60 days of the event. NexGen School for Early Life Foundations, LLC has the responsibility for notifying you or your family of continuation options within 14 days of your death, termination of employment, reduction in hours, or Medicare entitlement. If you do elect continuation coverage, Valley Health Plans is required to give you coverage which, as of the time coverage is being provided, is identical to the coverage provided under the plan to similarly situated employees or family members for whom a qualifying event has not occurred.

COBRA requires coverage be continued for a maximum of 18 months if you lose group coverage due to termination of employment or a reduction in hours. A second qualifying event, such as divorce or a dependent child losing dependent status may occur to your dependents while coverage is already being continued. If so, the continued dependents will be eligible for additional months of continued coverage, up to a maximum of 36 months from the date group coverage was first terminated. If group coverage is terminated because of death of the employee, divorce, legal separation, the employee's entitlement to Medicare, or dependent child losing dependent status, coverage may be continued for 36 months.

Your continuation coverage may be cut short for any of the following 3 reasons:

1. Our health provider no longer provides group health coverage to any of its employees.
2. The premiums for your continuation coverage are not paid.
3. You become covered under Medicare or another group health plan.

For additional information about continuation coverage, please contact Director.

POLICY: HOLIDAYS

POLICY NO.: 6.4

NexGen School for Early Life Foundations, LLC will be closed in observation of the following holidays, unless otherwise announced:
Labor Day, Thanksgiving Day, the day after Thanksgiving, Christmas, New Year's Day, Good Friday, Fourth of July

Generally, when one of the above listed holidays fall on a Sunday, it will be observed the following Monday. Likewise, if the holiday falls on a Saturday, it will be observed the preceding Friday.

Employees will be paid for their regularly scheduled hours for the day on which NexGen School for Early Life Foundations, LLC is closed for a holiday as holiday pay. Employees who are not regularly scheduled to work on a holiday will not receive any pay for the holiday. Because of the nature of some duties of the program's operation, some employees may be required to work a holiday. All holiday work must receive prior approval from the employee's supervisor.

POLICY: BONUSES

POLICY NO.: 6.5

Employees may be given bonuses throughout the year as the funds become available. Typical bonuses will be seen during the holiday months and may also be handed out based on performance.

POLICY: PAID TRAININGS

POLICY NO.: 6.6

Employees who participate in trainings conducted by childcare professionals may be reimbursed time and meals or be given funds prior to departure.

POLICY: BEREAVEMENT LEAVE POLICY NO.: 6.7-1

When the death of a member of an employee's family, as listed below, necessitates her or his absence from work, without pay, as needed. Prior notification of days requested must be made in writing to Director.

Husband	Mother	Grandmother
Wife	Father	Grandfather
Son	Brother	Grandson
Daughter	Sister	Granddaughter
Anyone who permanently resides in the employee's household		

When the death of a member of an employee's family listed below necessitates her or his absence from work, up to five days without pay may be granted by the Director.

Mother-in-Law
Father-in-Law
Son-in-Law
Daughter-in-Law

* Step-parent
* Step-child
Aunt
Uncle

Nephew
Brother-in-Law
Sister-in-Law
Niece

* Step-parent/step-child will be entitled to thirty days if step-child was primarily raised by the employee or the employee was primarily raised by the step-parent.

Employees must request Bereavement Leave as soon as possible in advance of the leave.

POLICY: FAMILY AND MEDICAL LEAVE

POLICY NO.: 6.7-2

The following family and medical leave policy is designed to comply with the provisions of the federal Family and Medical Leave Act Of 1993 (FMLA).

Employees who have been employed for at least 1 year and for at least 1,250 hours during the preceding 12-month period are eligible for family and medical leave. For employees not eligible for family and medical leave, NexGen School for Early Life Foundations, LLC will review business considerations and the individual circumstances involved. Employees designated as "highly compensated employees" (defined as the top 10% wage earners of the agency) are eligible for Family Medical Leave. Upon return from Family Medical Leave employees will return to the same or to an equivalent position.

Family or medical leave will be unpaid leave. If leave is requested for any of the reasons listed below, the employee must use all of her or his accrued paid sick, vacation, and personal leave in concert with Family or Medical Leave. The remainder of the leave will then consist of unpaid leave.

REASONS FOR LEAVE:

All employees who meet the applicable time of service requirements may be granted a total of 12 weeks of unpaid family leave and paid sick, vacation, and personal leave combined (during any 12-month period) for the following reasons:

- (1) The birth of the employee's child and in order to care for the child
- (2) The placement of a child with the employee for adoption or foster care
- (3) To care for a spouse, child, or parent who has a serious health condition
- (4) A serious health condition that renders the employee incapable of performing the function of her or his job.

The entitlement to leave for a child's birth or for placement of a child for adoption or foster care will expire 12 months from the date of the birth or placement.

APPLICATION FOR LEAVE

In all cases, an employee requesting leave must complete the attached "Application for Family and Medical Leave" and return it to the Human Resource Manager's Office. The completed application must state the reasons for the leave, the duration of the leave, and the starting and ending dates of the leave.

NOTICE OF LEAVE

An employee intending to take family or medical leave because of an expected birth or placement, or because of a planned medical treatment, must submit an application for leave at least 30 days before the leave is to begin. If leave is to begin within 30 days, an employee must give notice to her or his immediate supervisor and to the Human Resource Manager's office as soon as the necessity for the leave arises.

MEDICAL CERTIFICATION OF LEAVE

An application for leave based on the serious health condition of the employee or the employee's spouse, child, or parent must be accompanied by a "Medical Certification Statement" completed by the applicable health care provider. The certification must state the date on which the health condition commenced, the probable duration of the condition, and the appropriate medical facts regarding the condition.

If the employee is needed to care for a spouse, child, or parent, the certification must so state along with an estimate of the amount of time the employee will be needed. If the employee has a serious health condition, the certification must state that the employee cannot perform the functions of her or his job.

BENEFITS COVERAGE DURING LEAVE

During a period of family or medical leave, an employee will be retained on Valley Health Plan under the same conditions that applied before the leave commenced. An employee is not entitled to the accrual of any seniority or employment benefits that would have accrued if not for the taking of leave. An employee who takes family or medical leave will not lose any seniority or employment benefits that had accrued before the date leave began.

RESTORATION TO EMPLOYMENT

An employee eligible for family and medical leave (with the exception of those employees designated as "highly compensated employees") will be restored to her or his old position or to a position with equivalent pay, benefits, and other terms and conditions of employment. NexGen School for Early Life Foundations, LLC cannot guarantee that an employee will be returned to her or his original job. A determination as to whether a position is an "equivalent position" will be made by Director.

RETURN FROM LEAVE

An employee must complete a "Notice of Intention to Return from Family or Medical Leave" before she or he can be returned to active status. If an employee wishes to return to work prior to the expiration of a family or medical leave of absence, the employee must notify her or his supervisor at least 5 working days prior to the employee's return.

FAILURE TO RETURN FROM LEAVE

The failure of an employee to return to work upon the expiration of a family or medical leave of absence will subject the employee to immediate termination unless an extension is granted. An employee, who requests an extension of family leave or medical leave due to the condition, recurrence, or onset of her or his own serious health condition, or of the serious health condition of the employee's spouse, child, or parent, must submit a request for an extension, in writing, to the employee's supervisor. This written request must be made as soon as the employee realizes that she or he will not be able to return at the expiration of the leave period.

NexGen School for Early Life Foundations, LLC

POLICY: JURY AND WITNESS DUTY

POLICY NO.: 6.7-3

Effective Date: August 1, 2005

Jury Duty:

When leave of absence must be taken for jury duty, NexGen School for Early Life Foundations, LLC will recognize this leave without pay.

Proof of jury duty must be submitted to Director by the end of the pay period in which the employee serves.

Employees must notify their immediate supervisor as soon as possible after they receive notice they are called for Jury Duty. A copy of the official request to serve should be provided to the immediate supervisor upon notification.

Witness Duty:

When a leave of absence must be taken to answer a subpoena in court, the NexGen School for Early Life Foundations, LLC will recognize this leave without pay. Proof of the subpoena must be submitted to Director as soon as possible following service upon the employee.

POLICY: LEAVE WITHOUT PAY

POLICY NO.: 6:7-4

Employee's work schedules have been established giving consideration to the student/teacher ratio, workloads, and coverage requirements. Employee absences have a detrimental effect on these conditions. While absence for illness and emergency situations may happen from time to time, employees will **not** be granted leave beyond their accrued vacation, sick, and personal leave as a standard practice. Emergency circumstances will be considered on a case by case basis. Leave without pay will only be granted in extenuating circumstances. Leave without pay must be approved in advance of the requested start date of the leave by your immediate supervisor. Requests must be submitted in writing. Employees will receive notice of the approval/denial for leave of absence in writing.

Leave without pay which has not been approved by your supervisor will be considered a voluntary termination.

POLICY: OTHER, LEAVES OF ABSENCES

POLICY NO.: 6:7-5

Absences not covered by these policies shall be referred to the Director.

POLICY: SICK LEAVE

POLICY NO.: 6.8

Sick leave is time off with pay for periods of illness or incapacity resulting from non-occupational or occupational injury, as well as for medical, dental, or optical examinations or treatments.

Sick leave may be used when the employee's illness or incapacity interferes with or makes it impossible for the employee to satisfactorily perform her or his assigned duties.

Absences that are due to illness must be reported by 7:00 A.M. on the first day of absence by contacting your supervisor. If the employee is going to be out more than one day, she or he is required to call every day. The employee's failure to report her or his absence could result in termination. Excessive absence, even though reported, may result in disciplinary action up to and including termination.

An employee will be eligible to earn sick leave with pay after the initial provisional period as follows:

Six months after 90 day probation period. One sick day will be earned every six months.

An employee out on sick leave for more than five consecutive working days may be required to submit to her or his supervisor a written statement from a physician indicating status/condition of illness and/or ability to return to work.

Include the following statement if the agency is required by the Family Medical Leave Act to provide Family Medical Leave to its eligible employees:

From the information provided by the employee or the physician, the Family and Medical Leave Policy may need to be considered. NexGen School for Early Life Foundations, LLC complies with the Family and Medical Leave Act and recognizes that employees are entitled to leave of absence under certain conditions of our Family and Medical Leave Act Policy Number 6.5-2.

Sick leave will not be accrued and cannot be carried forward each year. Accrued sick leave carries no monetary value upon termination.

Sick leave will not accrue to an employee during any period during which the employee is on an unpaid or paid leave.

POLICY: VACATION

POLICY NO.: 6.9

Employees will accrue vacation time as outlined below. Employees are not eligible to use vacation time until they have completed one full year of employment. Employees will be entitled to their vacation days on the DAY OF THEIR ANNIVERSARY DATE. Vacation days must be USED DURING THE YEAR THEY ARE GRANTED.

Scheduling of vacation time requires prior approval from Director. Requests for vacation time are to be submitted to the Director at least 10 working days in advance of the first day of the requested time off. A change to approved vacation time requires prior approval of Director. NexGen School for Early Life Foundations, LLC has the right to deny an employee's Vacation request for any reason including but not limited to: other employees have requested the same vacation time, employee's performance is not satisfactory and time off would disrupt corrective action efforts, special agency events or activities which would necessitate employee's presence. Employees are discouraged from paying for or scheduling vacations until they have received approval.

Employees will be disciplined, up to and including termination for absences, which occur during the same time period as a Vacation Leave request, which was denied.

VACATION ALLOTMENT: For Full-Time Employees ONLY

One week vacation earned at the end of first complete year employed as a full-time employee and for years two and three in service.

Two weeks' vacation earned at the end of three complete years employed as a full-time employee and for years thereafter.

POLICY: COMPENSATION PLANS

POLICY NO.: 7.0

Effective Date: August 1, 2005

The Agency recognizes four parts to an employee's compensation package: base wage, increases for merit, cost of living raises, and employee benefits. It is the intent of NexGen School for Early Life Foundations, LLC to pay wages and provide for merit and/or cost of living increases as well as maintain the various employee benefits. However, the ability to do so will depend entirely on what funds NexGen School for Early Life Foundations, LLC receives. These amounts are often not known until well into any fiscal year or are fixed at the previous year's level of funding.

NexGen School for Early Life Foundations, LLC funds come from several sources i.e. tuition, grants, and subsidies. Based upon the expected availability of funds and the service needs of

NexGen School for Early Life Foundations, LLC in each program will develop a compensation plan for each program. The implementation of this plan is based upon actual receipt of funds. Employees will be notified of the compensation plan and time frame for implementation.

The positions NexGen School for Early Life Foundations, LLC require the employment of individuals with varied skills, background, education and experience. Compensation Plans from one department are not applicable to another department Employees are prohibited from discussing their compensation plan with other employees of NexGen School for Early Life Foundations, LLC. Violation of this policy will result in immediate termination.

POLICY: CONFLICT RESOLUTION

POLICY NO.: 8.0

The following procedures have been established to ensure that all parties to any conflict receive fair and equal hearing by those responsible for resolving conflicts.

1. The employee/petitioner must submit a written statement to her or his supervisor within 5 working days of the employee's knowledge of the event, which caused the conflict.
2. The supervisor shall attempt to resolve the conflict within two working days following receipt of the statement and issue a decision.
3. If the employee/petitioner is not satisfied, or if, indeed the conflict is with the supervisor, the employee/petitioner may appeal the supervisor's decision within two working days to the director.
4. NexGen School for Early Life Foundations, LLC Director shall attempt to resolve the conflict within two days working days of receipt of the statement. NexGen School for Early Life Foundations, LLC Director must issue a written decision and provide a copy of the decision to the petitioner/employee.

Terminated/Former Employees are not eligible to participate in the Conflict Resolution process.

POLICY: PERFORMANCE APPRAISAL

POLICY NO.: 9.0

The Performance Appraisal should be a positive growth experience for the employee and supervisor. Performance Appraisals will be used to evaluate the entire period of

employment since the employee's last appraisal. Appraisals will be made yearly.

Performance Appraisals will be based strictly upon job performance. Job descriptions will be utilized as the basis for the appraisal. All employees will be given an opportunity at orientation to discuss their job descriptions to assure that each employee understands her or his responsibilities and tasks. All employees will be given a copy of the Performance Appraisal form at this time.

Performance Appraisals will be used as a foundation to establish goals for the employee. Employees will be encouraged to develop short-term and long-term goals for themselves and to discuss their goals with their supervisor. Supervisors will monitor the employee's progress toward attaining the goals by scheduling performance review meetings with the employee from time to time between formal Performance Appraisals.

Supervisors will also present to employees the goals of the agency and their role in the successful attainment of these goals. Supervisors will keep employees informed of the agency's progress and any changes in the agency goals.

Supervisors will also solicit input from other employees who work closely with the employee being appraised.

Employees will be asked to complete a Survey prior to the Performance Appraisal meeting, which will include information about the job, working conditions, and goals. The Survey will be discussed during the Performance Appraisal meeting.

Performance Appraisals will be conducted for Provisional Employees at least once prior to the end of the Provisional Period using the Agency's Provisional Employee Appraisal Form.

Following the Provisional Period, Performance Appraisals will be conducted at least annually for each employee.

Before the Performance Appraisal is presented to the employee, it will be reviewed and approved by the evaluating supervisor's superior.

Employees must acknowledge receipt of the Performance Appraisal by signing the Performance Appraisal Form. The form will have 3 options for signature:

- I have read, reviewed, and agree with the Appraisal; or
- I have read, reviewed, and disagree with the Appraisal (this option requires the employee to attach written comments); or
- I have read and reviewed the Appraisal and neither agree nor disagree.

When an employee refuses to sign the Performance Appraisal, another employee will witness the refusal by signing a statement verifying the employee's refusal to sign the Appraisal form, and the employee will be subject to disciplinary action up to and including termination.

PERFORMANCE APPRAISAL FORM INSTRUCTIONS

1. We suggest that you provide the employee with the Survey Form prior to the scheduled Performance Appraisal meeting. Utilize the employee's responses to this Form to initiate discussion during the Performance Appraisal meeting.
2. Complete the Performance Appraisal Form.
3. Submit completed Form to your Supervisor for review and signature.
4. Schedule a Performance Appraisal meeting with the employee.
5. Forward the entire completed Performance Appraisal to the Director for signature. The Performance Appraisal will be placed in the employee's personnel record and a copy will be forwarded to the employee.
6. The Survey will be reviewed for training purposes and placed in the employee's confidential personnel record.

POLICY: EMPLOYEE CODE OF CONDUCT

POLICY NO.: 10.0

The Director and Owners believe that the purpose of the Employee Conduct Policy is to improve employee performance and customer service. As such, the Policy shall serve as a guide for supervisors and employees and shall be used to correct employee behavior and performance that does not meet standards.

As the basic standard of fairness in the Agency, employees are to be informed of the types of behavior expected of them and the rules, regulations, policies, procedures, and practices by which they must abide. Corrective actions result from failure to abide by the standards. It is the policy of the Board of Directors that the standards of conduct for employees be equitably enforced.

Each employee is expected to conduct her/himself in a manner befitting her or his status as an employee of NexGen School for Early Life Foundations, LLC. She or he shall refrain from actions or public announcements, which reflect adversely upon the Agency. Employees shall exercise prudence and discretion in regard to all official business of the Agency.

CORRECTIVE ACTIONS:

A corrective action may include a reprimand, written warning, suspension, or termination as deemed appropriate by NexGen School for Early Life Foundations, LLC.

POLICY: BUSINESS ETHICS AND CONDUCT

POLICY NO.: 10.1

The successful business operation and reputation of NexGen School for Early Life Foundations, LLC is built upon the principles of fair dealing and ethical conduct of our employees. Our reputation for integrity and excellence requires careful observance of the spirit and letter of applicable laws and regulations, as well as a scrupulous regard for the highest professional standards of conduct and personal integrity.

The continued success of NexGen School for Early Life Foundations, LLC is dependent upon our clients' trust and we are dedicated to preserving that trust. Employees owe a duty to NexGen School for Early Life Foundations, LLC and its clients, to act in a way that will merit the continued trust and confidence of the public.

NexGen School for Early Life Foundations, LLC will comply with all applicable laws and regulations and expects its directors, officers, and employees to conduct business in accordance with the letter, spirit, and intent of all relevant laws, statutes, ordinances, and regulations and to refrain from any illegal, dishonest, or unethical conduct.

In general, the use of good judgment, based on high ethical principles, will guide employees with respect to acceptable conduct. When a situation arises where it is difficult to determine the proper course of action, the employee should discuss the matter with his or her immediate supervisor, and if necessary, with the Executive Director for advice and consultation.

Compliance with this policy of Business Ethics and Conduct is the responsibility of every NexGen School for Early Life Foundations, LLC employee. Disregarding or failing to meet this standard of business ethics and conduct will result in disciplinary action up to and including termination.

POLICY: ACCEPTANCE OF GIFTS & GRATUITIES POLICY NO.: 10.2

Employees of NexGen School for Early Life Foundations, LLC are prohibited from accepting gifts, money, services, or gratuities from clients, vendors, contractors, and all other persons doing business with NexGen School for Early Life Foundations, LLC other than gifts received for birthdays, thank you's, Christmas and Teacher Appreciation Week.

Violation of this policy will result in disciplinary action up to and including immediate termination.

POLICY: CONFIDENTIALITY

POLICY NO.: 103

This Confidentiality Policy has been adopted to insure confidentiality and protection of individual rights of privacy for children, families, and employees of NexGen School for Early Life Foundations, LLC. The individual dignity of children, families, and employees shall be respected and protected at all times in accordance with all applicable laws.

Information about children, families, or employees must not be divulged to anyone other than persons who are authorized to receive such information. This policy extends to both internal and external disclosure of information.

An employee's responsibility to maintain confidentiality regarding information learned about, children, their parents/guardians, families and other employees extend 24 hours per day, 7 days per week regardless of how or where the information was attained. Employees must be diligent in their efforts to maintain confidentiality, and should be aware that there are job related consequences for violations of confidentiality and rights of privacy, and that there is also the potential for civil liability against the individual employee and the agency.

Confidentiality of Children's and Families' Information:

- a. All children's records must be locked in a secure file.
- b. Access to children's records is limited to employees with a "need to know".
- c. Children's records must not be removed from the center.
- d. Children's records must never be left out on desks, tables, etc. where other people may have access to them.
- e. Children's or families' private information must never be discussed among employees except on the "need to know" basis. Employees must be

particularly aware of their surroundings when discussing this information. Special caution must be taken to be sure other children, families, or employees do not overhear information, that is confidential.

- f. Discussion of children's or families' information with volunteers, other families, friends, or community members is prohibited.
- g. Information and documents considered confidential include, but are not limited to medical records, educational records, special needs records, family records, financial records, and any other private information about the children or their families.
- h. All requests for release of information shall be directed to Director.
- i. information will only be released to persons outside of NexGen School for Early Life Foundations, LLC with the express written consent of the child's parent or legal guardian.

Confidentiality of Employee's Information

- a. All employee records must be locked in a secure file.
- b. Access to an employee's records is limited to appropriate supervisory employees.
- c. An employee's records must not be removed from the center.
- d. An employee's records must never be left out on desks, tables, etc. where other people may have access to them.
- e. An Employee's private information must never be discussed among employees except on a "need to know" basis. Employees must be particularly aware of their surroundings when discussing this information. Special caution must be taken to be sure other children, families, or employees do not overhear information, that is confidential.
- f. Discussion of an employee's information with volunteers, families, friends, or community members is prohibited.
- g. Information and documents, which are considered to be confidential include, but are not limited to medical records, educational records, employment records, financial or pay records, and any other private information about the employee.
- h. All requests for release of information to persons outside of NexGen School for Early Life Foundations, LLC shall be directed to Director.
- i. Information will only be released to persons outside NexGen School for Early Life Foundations, LLC with the express written consent of the employee.

Confidentiality Related to Proprietary Information

NexGen School for Early Life Foundations, LLC has developed unique techniques, curriculum, and tools for evaluation, which make our program more competitive in the industry and are not to be revealed to sources outside of the company. Anything, which the company designs, produces, implements, and markets is treated as PROPRIETARY INFORMATION, also called trade secrets. This includes, but shall not be limited to, the agency's client list, employee list, curriculum, philosophy, mission statement, personnel policies, and parent handbook.

No employee should discuss proprietary information with other employees in any public place where it is possible they could be over heard. Employees must understand that it is not only their duty to protect NexGen School for Early Life Foundations, LLC proprietary information during their term of

employment, but the legal obligation continues even after separation from employment. Employees are required to return any and all documentation that contains proprietary information at the time of separation. NexGen School for Early Life Foundations, LLC is ready and willing to enforce this obligation through court, if necessary.

Violation of Confidentiality Policy

Any employee/volunteer who violates the Confidentiality Policy will be subject to disciplinary action including termination. In addition to job related consequences, the employee/volunteer may face possible civil liability for their actions.

POLICY: CONFLICT OF INTEREST

POLICY NO.: 10.4

A conflict of interest with regard to NexGen School for Early Life Foundations, LLC is defined as an activity or interest which is inconsistent with or opposed to the legitimate best interest of NexGen School for Early Life Foundations, LLC. It is the policy of NexGen School for Early Life Foundations, LLC that all directors, officers, Policy Council members, contractors/consultants, and employees will avoid personal transactions or situations in which their personal interest will or will appear to conflict with those of NexGen School for Early Life Foundations, LLC. For the purpose of this policy a member of an immediate family shall include any of the following persons:

Husband	Mother-in-Law	Niece
Wife	Father-in-Law	Nephew
Mother	Son-in-Law	Brother-in-Law
Father	Daughter-in-Law	Sister-in-Law
Sister	Step-Child	Grandmother
Brother	Step-Parent	Grandfather
Daughter	Aunt	Granddaughter
Son	Uncle	Grandson
Any person residing in the employee's immediate household		

A conflict of interest occurs whenever an employee permits the prospect of direct or indirect personal gain to influence her or his judgment or action when acting on behalf of NexGen School for Early Life Foundations, LLC. The following examples are representative but not inclusive of potential conflicts of interest:

- a. No employee shall do business with a member of her or his immediate family on behalf of NexGen School for Early Life Foundations, LLC, unless the circumstances of the proposed relationship have been clearly reviewed by the Director and has been deemed to have no potential or inherent conflict of interest qualities.
- a. All employees must deal with suppliers, contractors, customers, and all other persons doing business with NexGen School for Early Life Foundations, LLC in the best interest of NexGen School for Early Life Foundations, LLC without favor or preference based on personal consideration.
- a. No employee shall misuse privileged information or reveal confidential data to outsiders for the purpose of personal gain or for any reason other than agency purposes.

- a. No employee shall deal with NexGen School for Early Life Foundations, LLC or with one of NexGen School for Early Life Foundations, LLC clients or suppliers as a representative of another firm or for her or his own account.
- a. No employee shall participate in the selection, award or administration of a

contract where to her or his knowledge she or he or her or his immediate family has a financial interest.

- a. No employee shall solicit, accept or offer gratuities, favors, or anything of monetary value from other employees or persons receiving benefits or services or from contractors or potential contractors for personal gain or inherent conflict of interest.
- a. An employee shall not serve on the board or a committee of NexGen School for Early Life Foundations, LLC if that board or committee has authority to order personnel action.

POLICY: DISCIPLINARY ACTION: Reprimand

POLICY NO. : 10.5-1

A reprimand may be given to any employee when a minor violation of agency policies or procedures has occurred. A reprimand may be either verbal or written. If the reprimand is verbal, it must be documented by the supervisor and the documentation must be placed in the employee's personnel file. If the reprimand is written, a copy of the written reprimand must be given to the employee and a copy of the reprimand and a document signed by the employee acknowledging receipt of the written reprimand must be placed in the employee's file. A reprimand may be given by the employee's immediate supervisor.

POLICY: DISCIPLINARY ACTION: Written Warning POLICY NO.: 10.5-2

Employees may be given a written warning for violations of agency policies and procedures. The written warning will clearly describe the deficiency in the performance or conduct and will site the policy, licensing regulation or procedure violated. The written warning will contain a correction action plan, which will outline the necessary action to correct the deficiency (ies) and a time table under which the corrective action must occur.

Employees are required to sign for receipt of a written warning. Signature of receipt does not indicate that the employee agrees with the written warning, it simply indicates that they have received a copy of the document. Failure or refusal to sign the written warning will be considered insubordination and will result in disciplinary action up to and including termination.

Copies of all documentation regarding corrective action plans will be sent to the Director.

POLICY: DISCIPLINARY ACTION:

POLICY NO.: 10.5-3

Investigatory Suspension

The Director may suspend an employee for Investigatory purposes. The Investigatory suspension can be with or without pay as determined by Director and will result in either full reinstatement with back pay, if appropriate, or further disciplinary action, including termination.

Examples of situations which would warrant use of Investigatory suspension include, but are not limited to:

1. Charges of driving while intoxicated.
2. Report of child abuse or neglect.
3. Accusations of theft.
4. Violation of Substance Abuse Policy.
5. Other similar situations.

Investigatory suspension may not exceed 10 days without the approval of the Director.

POLICY: DISCIPLINARY ACTION: Suspension

POLICY NO.: 10.5-4

Suspension of an employee may occur at the discretion of the employee's immediate supervisor for specific infractions of the Personnel Policies. Suspension of an employee will not require prior verbal or written disciplinary action

Suspension will be without pay. The employee will be notified in writing of the specific charges and the length of the suspension. The employee is required to sign a copy of the suspension notification acknowledged receipt of same. Failure to sign for receipt of the suspension notification will be considered insubordination and will result in disciplinary action including termination.

When circumstances permit, an employee will be suspended upon receipt of the notification. However, an employee may be suspended verbally if immediate suspension is in the best interest of NexGen School for Early Life Foundations, LLC. Written notification in these circumstances will promptly follow via certified mail. Suspension by verbal notice may be taken by the immediate supervisor/Director.

POLICY: DISCIPLINARY ACTION: Termination

POLICY NO.: 10.5-5

Involuntary termination shall not require prior verbal or written disciplinary action. NexGen School for Early Life Foundations, LLC is an "at-will" employer and may terminate the employment relationship at any time with or without cause and without notice. This policy is to be used as a guide for employee's but is not inclusive of the reasons or causes of termination from employment.

Termination is an action approved by Director. Notification of Termination may be written or verbal.

Causes for involuntary termination include, but are not limited to, the following:

- Unsatisfactory provisional period
- Falsifying or misusing records, including application
- Violation of confidentiality rules
- Theft or misuse of Agency funds, equipment, or property
- Absence from work without notification and/or approval as per related policies
- Discourteous treatment of the public, clients, co-workers
- Inappropriate behavior
- Non-performance of duties resulting in injury to the Agency, its children, clients, or employees.
 - Being abusive or neglectful to children, parents, or employees
- Violation of the Substance Abuse Control Policy
- Failure to submit required documentation within mandated time frame
- Neglect of duty or refusal to comply with directives of supervisor

- Misuse of leave policies
- Insubordination
- Receipt of 2 suspensions for the same infraction during any 12-month period.
- Failure to implement job specifics
- Receipt of 3 warnings for any violations during any 12-month period; the date of the third warning will be the employee's last day of employment
- Failure to return to work following a leave of absence
- Failure to meet deadlines as presented by supervisor

POLICY: E-MAIL AND INTERNET USAGE

POLICY NO.: 10.6

Employees are not permitted to send or receive personal e-mail on NexGen School for Early Life Foundations, LLC computers or e-mail accounts.

Employees are not permitted to utilize agency computers or internet access for personal reasons.

POLICY: EMPLOYEE'S PERSONAL ITEMS

POLICY NO.: 10.7

NexGen School for Early Life Foundations, LLC is not responsible for an employee's personal items brought to any NexGen School for Early Life Foundations, LLC facility or to any work-related field trip or training session.

Employees are discouraged from bringing personal items to the workplace. Work space is provided for the employee to successfully complete the requirements of her or his position. It is not intended to be treated as a display area for an employee's personal possessions.

NexGen School for Early Life Foundations, LLC reserves the right to remove an employee's personal possession(s), which it deems inappropriate for the workplace.

An employee who is terminated will not be given an opportunity to "clean out her or his desk." Any personal property which may be in the work space will be packed and shipped to the employee at the employee's expense.

POLICY: NON-FRATERNIZATION

POLICY NO.: 10.8

Employees of NexGen School for Early Life Foundations, LLC are strictly prohibited from fraternizing with any client.

Clients of NexGen School for Early Life Foundations, LLC shall be provided with the best possible quality service. Employees shall treat clients, vendors, co-workers and the public with courtesy, appropriate distance, and respect.

Attending a "social event" or a "private gathering" with a client of the NexGen School for Early Life Foundations, LLC shall occur only with caution and any NexGen School for Early Life Foundations, LLC employee needs to behave in a professional manner.

Employees should abstain from any intimate physical contact and involvement with clients. Employees should also avoid any unwelcome advances and intimate acts made by clients. Employees are required to report to their immediate supervisor any unwelcome advances or attempts at intimate acts made by clients or co-workers.

Employees should abstain from any intimate physical contact or involvement with other employees. This shall include dating other employees.

Employees should immediately report any action by a client or employee that would be considered a violation of this policy to his or her immediate supervisor.

Employees who violate this policy will be subject to disciplinary action up to and including termination.

POLICY: NON-SOLICITATION

POLICY NO.: 10.9

Employees of NexGen School for Early Life Foundations, LLC are strictly prohibited from solicitation of any kind while on any NexGen School for Early Life Foundations, LLC property without supervisor's permission.

Employees who violate this policy will be subject to disciplinary action up to and including termination.

POLICY: OUTSIDE EMPLOYMENT

POLICY NO.: 10.10

Employees of are discouraged from accepting any employment from any client of NexGen School for Early Life Foundations, LLC.

Violation of this policy may result in disciplinary action up to and including termination.

POLICY: PERSONAL APPEARANCE

POLICY NO.: 10.11

All employees are expected to present a neat and clean appearance and to dress appropriately for their position and duties. Employee's dress should reflect the professional nature of their position as well as be functional within the expectations and responsibilities of their job.

Employees, including cooks (due to food handler's regulations), working directly with children are prohibited from wearing jewelry of any kind as it presents a safety risk to the employee as well as to the children. Employees should also have trimmed nails. If you feel your nails might accidentally hurt a child when you reach out to them, keep them cut short.

NexGen School for Early Life Foundations, LLC is not responsible for damage to or loss of an employee's articles of clothing,

jewelry and/or accessories.

Violation of this policy will result in disciplinary action up to and including termination.

POLICY: DRESS CODE

POLICY NO: 10.11-1

Employees must wear school logo shirts. Shirts must be ordered through the office. Employees are responsible for the purchase of school shirts.

Employees must wear full length pants black pants. Blue jeans may be worn on Fridays only and on designated days determined by Director. Pants must not be tight and must have a hemmed leg. (No fringe like or torn pants allowed.) Only during summer time employees can wear capris and shorts (must be below the knees).

Employees must wear adequate shoes to protect feet, such as boots or sneakers. NO sandals, house shoes, or crocs are allowed.

Excessively loose, tight fit, or ragged clothes are not allowed.

Red polo shirts with special school logo will be worn for special occasions such as school programs, open houses, and other times designated by Director. Again, employees are responsible for the purchase.

Violation of this policy will result in written reprimands to be kept on file. Continued violation, more than three times, will result in disciplinary action up to and including termination.

POLICY: POLITICAL ACTIVITIES

POLICY NO.: 10.12

During hours of employment, or while on agency property, or with the use of agency funds, employees of NexGen School for Early Life Foundations, LLC are prohibited from the following:

- Participation in any partisan or non-partisan political activity or any other political activity associated with a candidate, or contending faction or group, for an election for public or party office.
- Participation in any activity to provide voters or prospective voters with transportation to the polls or similar assistance in connection with any such election.
- Participation in any voter registration activity.

Violation of this policy will result in immediate termination.

POLICY: SEXUAL HARASSMENT**POLICY NO.: 10.13**

NexGen School for Early Life Foundations, LLC provides a workplace free of discrimination. Actions, words, jokes, or comments based on an individual's sex, race, age, ethnicity, religion, or any legally protected characteristic are not tolerated. Overt and subtle harassment creates an offensive, hostile, and uncomfortable work environment and is strictly prohibited.

Harassment by any employee or by a client to an employee requires investigation. If harassment is found, the harasser will be subject to disciplinary action including possible termination.

NexGen School for Early Life Foundations, LLC prohibits sexual harassment. NexGen School for Early Life Foundations, LLC employees, volunteers, clients, and applicants have a right to work in a discrimination free environment, including freedom from sexual harassment.

Sexual harassment is strictly prohibited and will not be tolerated. Sexual harassment may be defined as, but not limited to:

- Suggesting to an employee that submitting to sexual favors enhances employment opportunities and/or advancement.
- Threatening or insinuating that refusal to submit to sexual advance will adversely affect employment appraisal, wages, advancement, assigned duties, shifts, or any other condition of employment or career development.
- Offering unwelcome sexual advancement or flirtation.
- Using sexually degrading words.
- Offering sexually suggestive or erotic comments regarding a person's body or mannerisms.
- Displaying graphically sexual pictures and/or objects in the workplace.

Supervisors shall maintain a workplace free of sexual harassment. Sexual harassment policies shall be discussed with employees assuring that insulting and/or degrading sexual harassment shall not be tolerated.

Sexual Harassment Complaint Procedure:

Sexual and impermissible harassment complaints should be reported immediately to an

employee's supervisor. If it is inappropriate to notify the supervisor, contact the Director. Sexual harassment complaints will be investigated promptly and all information will be kept confidential. Investigation results require the Director action and resolution.

Sexual Harassment Complaint Action:

Sexual harassment investigations confirming allegations require swift and prompt corrective action and disciplinary action or possible termination against the offending Party.

POLICY: SMOKE-FREE WORKPLACE

POLICY NO.: 10.14

All facilities, grounds, and vehicles of the NexGen School for Early Life Foundations, LLC are Smoke-Free Environments. Smoking is prohibited in any of these areas.

In addition, employees are prohibited from becoming nuisances to NexGen School for Early Life Foundations, LLC neighbors by loitering on their property while smoking.

Violation of this policy will result in disciplinary action.

POLICY: SUBSTANCE ABUSE CONTROL

POLICY NO 10.15

NexGen School for Early Life Foundations, LLC management shall take necessary measures to assure that the use of alcohol or unauthorized substances by employees does not endanger the health, safety, and security of our children, employees, volunteers, NexGen School for Early Life Foundations, LLC sites and the entire NexGen School for Early Life Foundations, LLC operation.

The unlawful manufacture, distribution, dispensation, possession, concealment, transportation, sale or use of unauthorized substances on NexGen School for Early Life Foundations, LLC premises, vehicles, or while conducting program business off sites are absolutely prohibited. The presence of an unauthorized substance(s) in an employee's system while on NexGen School for Early Life Foundations, LLC premises, vehicles, or while conducting NexGen School for Early Life Foundations, LLC business off premises is also strictly prohibited. Unauthorized substances include illegal drugs, unauthorized drugs and drug paraphernalia. The abuse or misuse of alcohol, prescription drugs or over-the-counter drugs which have been legally obtained is also strictly prohibited on NexGen School for Early Life Foundations, LLC premises, vehicles, or while conducting NexGen School for Early Life Foundations, LLC business off premises.

The use of alcohol on or in NexGen School for Early Life Foundations, LLC property or vehicles is also prohibited. Violation of this policy will lead to termination of employment.

PRE-EMPLOYMENT REQUIREMENT

NexGen School for Early Life Foundations, LLC will require an applicant to provide information about all felony and misdemeanor convictions and information about all pending criminal charges, including deferred adjudication. If the applicant refuses to provide information, the interview process will be terminated. The references and employment history of the applicants will be checked before NexGen School for Early Life Foundations, LLC offers employment. If there is evidence or reasonable suspicion of substance abuse or misuse, the applicant will be disqualified from further employment consideration.

EMPLOYMENT REQUIREMENTS

NexGen School for Early Life Foundations, LLC will check with the police to obtain information about all pending criminal charges, including deferred adjudication of all current NexGen School for Early Life Foundations, LLC employees. NexGen School for Early Life Foundations, LLC management will advise all new employees of the program's policy to check with the police for evidence of a criminal history.

EMPLOYEE TESTING

If there is a reasonable suspicion of substance abuse or misuse, because the employee's behavior or health appears to endanger the health, safety, or well-being of the children, NexGen School for Early Life Foundations, LLC will require testing of the employee. Confirmed positive tests of urine, blood or expired air, or refusal to submit to testing or refusal of permission to release substance testing information to appropriate management, will be basis for termination of employment. Substance testing is not a part of NexGen School for Early Life Foundations, LLC ongoing evaluation program. Substance testing may be required (1) where reasonable suspicion exists to warrant such testing; or (2) where necessary to comply with federal, state, or local regulations.

Selection of quality controlled laboratories, standards and procedures for testing, chain of custody, verification of test results, retention of specimen where applicable are the responsibilities of the NexGen School for Early Life Foundations, LLC. The NexGen School for Early Life Foundations, LLC Director will be assisted by a Medical Specialist in the selection of appropriate laboratories for substance abuse testing.

INSPECTION AND SEARCHES

The NexGen School for Early Life Foundations, LLC program has the right to require employees, while on duty or on NexGen School for Early Life Foundations, LLC premises including parking lots, to agree to inspections of NexGen School for Early Life Foundations, LLC property, vehicles, as well as the offices, desks, and file cabinets assigned to them. If an employee withholds consent to such an inspection, the employee will be immediately terminated.

REHABILITATION

A referral to a rehabilitation program will be offered to the employee who uses drugs. Such a referral or participation in a rehabilitation program will not prevent termination of employment. Payment for any rehabilitation program needed will be incurred by the employee.

NOTIFICATION OF AN INDICTMENT OR COMPLAINT

Employees are required to notify the NexGen School for Early Life Foundations, LLC program of any criminal drug statute conviction no later than 24 hours after such a conviction. The center director of a program site must notify the Director if an employee at her or his worksite has been indicted or if there is a complaint within 8 hours after receiving such notice. Further, the Center Director must notify the State Department of Human Services licensing division of an employee incident or complaint within 24 hours or on the next work day. The Director will notify the employee of termination of employment due to violation of the NexGen School for Early Life Foundations, LLC Program's Substance Abuse Policy, the Texas Minimum Standards, the Texas Controlled Substance Act, and the Federal Drug-Free Workplace Act of 1988.

IMPLEMENTATION

It is the responsibility of the various site directors to implement the NexGen School for Early Life Foundations, LLC Substance Abuse Policy. Each program site should address alcohol and drug abuse by (1) Teaching the facts about drugs and alcohol, (2) Explaining the [AGENCY NAME] Abuse Policy, (3) Addressing drug problems in employees meetings, (4) Raising the employees' awareness to the drug problem in the workplace, (5) Presenting a unified and visible commitment toward a drug-free workplace, and (6) Promoting a drug-free lifestyle.

INDICTMENT OR OFFICIAL COMPLAINT

The center must ensure that a person who is indicted, or the subject of an official criminal complaint accepted by a county or district attorney alleging she or he committed a felony violation of any law intended to control the possession or distribution of any substance included as a controlled substance in the Texas Controlled Substance Act, must not be at the center while children are in care and must not have contact with the children in care until the charges are resolved.

PERSONNEL RECORDS

The center must maintain personnel records for all employees and ensure that each employee's record includes a statement from the employee providing information about all felony and misdemeanor convictions, and all pending criminal charges, including deferred adjudication.

CONVICTION OF A FELONY VIOLATION

No one may serve as a center director or employee of a NexGen School for Early Life Foundations, LLC center who has been convicted of a felony violation of any law intended to control the possession or distribution of any substance included as a controlled substance in the Texas Controlled Substance Act.

CONTACT WITH CHILDREN

A person convicted of a felony violation of any law intended to control the possession or distribution of any substance included as a controlled substance in the Texas Controlled Substance Act must not be at the NexGen School for Early Life Foundations, LLC center while children are in care and must not serve in any capacity where there is contact with children in care.

People whose behavior or health appears to endanger the health, safety, or well-being of children must not be at the NexGen School for Early Life Foundations, LLC center.

People must not smoke in the children's presence or consume alcohol when children are at the center.

People who appear to be under the influence of alcohol or other drugs must not be in the center when children are present.

PERSONNEL ACTION

Violation and conviction of any law intended to control the possession or distribution of a controlled substance will lead to termination of employment as consistent with state licensing requirements for child care facilities.

POLICY: TELEPHONE AND MAIL USAGE

POLICY NO.: 10.16

Employees are not permitted to make outgoing personal telephone calls during work hours unless authorized to do so by Director.

Employees are not permitted to receive personal telephone calls during work hours except in the case of emergency.

The NexGen School for Early Life Foundations, LLC mail and telephone facilities are intended for business and are not intended for personal use. Personal telephone calls should be made only in emergencies. Should you need to place a zone or long-distance personal phone call or use the mail service, you must seek prior approval and you will be required to pay the toll charges and postage as they apply.

Every time you make or receive a business telephone call, you are representing not only yourself, as a professional, but NexGen School for Early Life Foundations, LLC. Good telephone techniques to follow include the following:

- Answer promptly and courteously.
- Identify yourself and your department.
- Keep your conversation business-like and brief, avoiding prolonged chats.
- Transfer incoming calls to the appropriate party courteously and quickly.
- Have someone take your calls when you are away from your desk.
- Take messages accurately and relay them to the person as soon as possible.
- Answer questions thoroughly to ensure that the caller has received the information requested.

Be available to respond to clients' calls to ensure good client service and to minimize the cost of return calls.

- Close your conversation with a pleasant "Good-bye."
- Be effective but efficient, keeping in mind that the use of our telephones is very important to our client service but is also an expensive overhead item.
- If you are taking a call in your room, MAINTAIN EYE CONTACT WITH THE CHILDREN IN YOUR CLASSROOM. DO NOT turn your back to the children while you are on the phone.

POLICY: LESSON PLANNING

POLICY NO.: 11.0

Employees will be given an initial consultation on lesson planning along with guidance on our teaching systems. Training is provided for our curriculum *Frog Street* in a reasonable amount of time to properly comprehend the ins and outs of this professional development.

Teachers are given 60min of planning time, once per week, to compile their lesson plans. Teachers must sign/log-in when using this time to be given proper compensation. In addition, all employees have access to a “resource room” we call the lounge. This space can be utilized for lesson planning and includes resources needed to complete all necessary preparations.

Staff meetings are held once a month to stay updated on regulations/laws and to provide feedback on lesson planning. Our facility assigns a curriculum supervisor roll to an employee who exemplifies a deep understanding of the curriculum and provides consultations on lesson planning.

POLICY: OFFICE RESOURCES

POLICY NO.: 11.1

Employees are welcome to use office supplies in their efforts to design lesson plans, classrooms, and anything they need for educational purposes. Supplies that are included, but not limited to, are:

- Computers
- Printer
- Lamination Machine
- Paints
- Colored Pens/Pencils
- Crayons/Markers
- Craft Paper
- Ribbon
- Staplers/Tape

POLICY: PERSONNEL RECORDS

POLICY NO.: 12.0

A confidential file will be maintained on each employee containing all employment related documents such as the employment application, resume, job and salary history, performance appraisals, disciplinary action, general correspondence and other documents that pertain to employment with NexGen School for Early Life Foundations, LLC. To comply with the Americans with Disabilities Act, NexGen School for Early Life Foundations, LLC keeps all medically related information in a separate confidential file.

Any false statements made by employees on their employment applications or personnel records will result in disciplinary action, up to and including termination.

An employee may have supervised access to her or his file during normal business hours upon request to Director. Personnel files may not be removed from Office. Employees are prohibited from removing any documents from their personnel file. Employees may only add documentation to their personnel file with the permission of Director.

Employee requests for copies of the documents contained in the personnel file must be made in writing to Director. Employees will be charged \$1 per page for photocopying.

POLICY: EMPLOYMENT REFERENCES

POLICY NO. : 12.1

Requests for references should be directed to the Director.

NexGen School for Early Life Foundations, LLC will release information **regarding positions held and length of employment for reference purposes. In order to release any additional information regarding employment**, the employee must provide a signed release. Confidential information will only be provided with the employee's express written permission. All requests for references must be in writing. NexGen School for Early Life Foundations, LLC will not provide information by telephone.

Unless specifically authorized by Director or Owner, employees are strictly prohibited from providing references for any employee under any circumstance including a personal reference. Any employee who provides reference will be subject disciplinary action including termination.

POLICY: EMPLOYMENT VERIFICATION

POLICY NO.: 12.2

From time to time employees may request NexGen School for Early Life Foundations, LLC to verify employment, position held, salary, address, and other information for credit and other purposes. These requests must be made to the Director.

Requests for employment verification sent to any other employee may create a delay in releasing the information. Unauthorized employees are strictly prohibited from responding to any request for employment verification. All requests will be answered by Director.

All requests must be made in writing. Director will not verify employment by telephone. The request must include the employees written authorization to release or verify any information.

Occasionally Director receives subpoenas for employee information. NexGen School for Early Life Foundations, LLC is required by law to release the information requested in the subpoena and will comply with any subpoena it receives.

PROVISIONAL EMPLOYEE APPRAISAL

NAME: _____ POSITION: _____

Employment Site: _____ Appointment Date: _____

1. Review the employee's Job Description. Does the employee have an understanding of her or his duties and responsibilities?

_____ Yes _____ No

If no, please explain: _____

Please rate each of the qualities listed below separately:

	SATISFACTORY	UNSATISFACTORY	UNABLE TO RATE	TRAINING RECOMMENDED
QUALITY OF WORK				
QUANTITY OF WORK				
SUITABILITYFOR THE POSITION				
ATTENDANCE				
DEPENDABILITY TO PERFORM ASSIGNED DUTIES				
MAINTAINS CONFIDENTIALITY				
APPLIES AGENCY POLICIES AND PROCEDURES				

If you checked "Training Recommended" in any of the above areas, please explain the type of training you recommend.
Please be specific.

3. Recommendation:

Do you recommend that this provisional employee be continued as a regular employee?

_____ Yes _____ No

If no, please check one of the following:

_____ Release _____ Extend Provisional Period: Provisional Period Extended Until: _____

Please explain:

SUPERVISOR: _____ DATE: _____

DIRECTOR: _____ DATE: _____
(Must be signed prior to presenting to employee.)

EMPLOYEE (PLEASE SIGN ONE LINE)

I have read, reviewed, and agree with the Provisional Period Appraisal

_____ DATE: _____

I have read, reviewed, and disagree with the Provisional Period Appraisal. (Employee is required to attach written comments)

_____ DATE: _____

I have read and reviewed the Provisional Period Appraisal and neither agree nor disagree.

_____ DATE: _____

PERFORMANCE APPRAISAL FORM

1. JOB PERFORMANCE: Using the employee's Position Description please rate each of the Duties and Responsibilities using the following scale:

M - Meets Job Requirements

E - Exceeds Job Requirements

N - Does Not Meet Job Requirements/Needs Improvement

Ratings of Exceeds and Does Not Meet Job Requirements/Needs Improvement will require comments.

2. NARRATIVE: (Attach additional sheets where necessary.)

A. Review the last Performance Appraisal goals with employee. Have these goals been met? If not, what can be done to attain them?

B. Establish goals for the coming year. Be specific. State what action the employee and supervisor need to take to attain these goals.

C. Does the employee show any specific strengths in the performance of her or his duties?

D. Please comment on any Duties and Responsibilities which received ratings of Exceeds or Does Not Meet Job Requirements. Please cite examples, if appropriate.

E. Other specific comments:

3. SIGNATURES:

SUPERVISOR: _____ DATE: _____

YOUR SUPERVISOR: _____ DATE: _____

EMPLOYEE (PLEASE SIGN ONE LINE):

I have read, reviewed, and agree with the Appraisal.

_____ DATE: _____

I have read, reviewed, and disagree with the Appraisal. (Employee is required to attach written comments.)

_____ DATE: _____

I have read and reviewed the Appraisal and neither agree nor disagree.

_____ DATE: _____

EMPLOYEE SURVEY FORM

The purpose of this Form is to help you think about yourself in relation to the job you have now and the future. This Survey will be given to you prior to your scheduled Performance Appraisal meeting. Bring the completed Survey with you to the meeting to share with your supervisor. This information will be used to plan future training and to set your goals for the coming year. After you and your supervisor have reviewed the completed Survey, the information will be forwarded to the Human Resources Manager for review and will be placed in your personnel record.

Please complete the following prior to your scheduled Performance Appraisal meeting with your supervisor:

1. How long have you been employed by the program?
2. Are you satisfied with your education, or would you like to improve it in some way? Please explain.
3. What are some of the skills you feel you have learned since your last performance appraisal?
4. What are your accomplishments since your last performance appraisal?
5. What do you like most about your work?
6. We understand that working conditions are not always perfect. Is there anything you do not like about your work? Is there anything the agency can do to improve this? Please be specific.
7. Is there anything you need that you feel would help you do a better job? Please be specific.
8. Are you satisfied with the type of assignments you are performing? Is there anything that you would like to learn more about or learn to do better?
9. Are there some new skills you would like to learn to do as a part of your work?
10. Would you like the opportunity to get more training? If yes, in what areas?
11. What would be the goals you would set for yourself in the coming year?

PERFORMANCE APPRAISAL FORM INSTRUCTIONS

1. We suggest that you provide the employee with the Survey Form prior to the scheduled Performance Appraisal meeting. Utilize the employee's responses to this Form to initiate discussion during the Performance Appraisal meeting.
2. Complete the Performance Appraisal Form.
3. Submit completed Form to your Supervisor for review and signature.
4. Schedule a Performance Appraisal meeting with the employee.
5. Forward the entire completed Performance Appraisal to the DIRECTOR for signature. The Performance Appraisal will be placed in the employee's personnel record and a copy will be forwarded to the employee.
6. The Survey will be reviewed for training purposes and placed in the employee's confidential personnel record.